

22SMCV00916 22SMCV00916

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-15

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The court has before it a motion for sanctions brought by plaintiff. Plaintiff seeks evidentiary, issue, or terminating sanctions. That aspect of the motion is DENIED. The court cannot grant such sanctions as a matter of discovery absent violation of a court order, and none is alleged here. Defendant is right about that.

However, the court is troubled by defendant's tactics. The responses to written discovery are all objection only responses. The court has looked at the objections and it is plain that they are in bad faith. Accordingly, The court agrees that it will consider the alternative relief sought: an order compelling further responses and to force a second day of deposition. In that respect, the motion is GRANTED.

Defendant is to provide verified responses without objection to the discovery at issue, including the actual production of documents. Attorney/client or work product objections can be asserted, but any documents not produced for that reason will be logged at the same time. If defendant cannot fully comply, then a statement compliant with section 2031.230 will be provided. That means that if documents exist but defendant cannot provide them, or that documents once existed but no longer exist, the declaration is required.

That will be completed within 5 court days. In addition, Jones will sit for a second day of deposition. The date will be set by plaintiff on any business day but on not less than 72 hours notice. If Jones cannot sit on that day, Jones may, within 24 hours of the notice, so object and plaintiff will pick another date, also on not less than 72 hours' notice, to which Jones may not object. The deposition will not last longer than an additional 7 hours, exclusive of colloquy and time off the record, without

leave of court.

Jones had no right to walk out of the deposition at 2 pm. That was bad faith. As to the discovery responses, the MSJ was denied based on the theory that lots of these expenses were legitimate. That may or may not be true, but Jones cannot give a partial or inadequate response to the very discovery to test that theory.

The court warns Jones that if this order is violated, other sanctions may be imposed.

The court is aware that its order means that there will be issues regarding the trial date. To that extent, the court allows the discovery to go forward notwithstanding the discovery cut off, but the cut off is in no other way extended at this time. If plaintiff needs to continue the trial date, plaintiff may bring an application to do so. While normally the court would not so allow, there has been a history of conduct in this case that might lead to a continuance.